

## 25STCV30159 25STCV30159

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-06

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Case Number: 25STCV30159 Hearing Date: August 6, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

JEFREY FERRIS,

Plaintiff,

vs.

BLUE SHIELD OF CALIFORNIA

PROMISE HEALTH PLAN, et al.,

Defendants.

Case No.:

25STCV30159

Hearing Date:

August 6, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT IMPERIAL HEALTH HOLDINGS' MOTION  
TO STRIKE PUNITIVE DAMAGES PORTION OF PLAINTIFF'S FIRST AMENDED COMPLAINT

Background

On October 15, 2025, Plaintiff Jeffrey Ferris ("Plaintiff") filed this action against Defendants Blue Shield Promise Health Plan, Imperial Health Holdings, and Adventist Health Physicians Network (collectively, "Defendants"), alleging four causes of action. Plaintiff filed the operative first amended complaint ("FAC") on February 10, 2026, alleging four causes of action for (1) breach of the implied covenant of good faith and fair dealing, (2) breach of contract, (3) violations of Business & Professions Code section 17200, and (4) negligence.

Imperial Health Holdings ("Imperial") now moves to strike portions of the complaint. Plaintiff opposes. Imperial replied.

Discussion

As an initial matter, Imperial's counsel submits a declaration in support of the motion to strike, which indicates, inter alia, that "[o]n March 5, 2026, I sent email correspondence to Plaintiff's counsel of record on this matter, explaining Imperial Health's intent to file a Motion to Strike Plaintiff's punitive damages allegations from the First Amended Complaint, and requesting to meet and confer regarding the matter." (Norwood Decl., ¶ 2.) Imperial's counsel further attests that he "did not receive a response to this correspondence and the Parties have been otherwise unable to reach an agreement regarding the issues with the First Amended Complaint raised by Imperial Health before the filing of this motion." (Norwood Decl., ¶ 3.)

Imperial's counsel's declaration does not demonstrate that the parties met and conferred by telephone or in person.

Pursuant to Code of Civil Procedure section 435.5, subdivision (a), "[b]efore filing a motion to strike pursuant to this chapter, the

moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Emphasis added.) Such meeting and conferring must be done in good faith with an effort to try to resolve the issues subject to the motion to strike.

In light of the foregoing, the hearing on Imperial's motion to strike is continued to \_\_\_\_\_, 2026 at 10:00 a.m. in Dept. 508.

Imperial is ordered to meet and confer with Plaintiff within 10 days of the date of this order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Imperial is to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 435.5, subdivision (a)(3) within 15 days of this Order. If a timely declaration is not filed, the Court will assume that the parties resolved the underlying issues and the motion to strike will go off calendar.

Imperial is ordered to give notice of this Order.

DATED: August 6, 2026 \_\_\_\_\_

Hon. Teresa A.  
Beaudet

Judge, Los  
Angeles Superior Court